

Case :- APPLICATION U/S 482 No. - 17872 of 2022

Applicant :- Satish Chandra

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Vishnu Shankar Choubey

Counsel for Opposite Party :- G.A., Udit Chandra

Hon'ble Syed Aftab Husain Rizvi, J.

Heard learned counsel for the applicant, learned A.G.A. for the State and perused the record.

This application under section 482 Cr.P.C. has been filed to quash the charge-sheet dated 11.6.2021 and summoning order dated 3.2.2022 passed by Additional District and Session Judge/Special Judge (E.C. Act) Varanasi in Criminal Case No. 42 of 2022 (State Vs. Satish Chandra) arising out of Case Crime No. 0206 of 2019, under sections 138(1)(b) of the Electricity Act, P.S. Anti Power Theft, District Varanasi.

An FIR was lodged on 27.11.2019 against the applicant alleging therein that his electricity connection was disconnected for non payment of dues. On inspection it was found that he was using the electricity connection in unauthorized manner.

The submission of learned counsel for the applicant is that electricity supply of the applicant was not disconnected before lodging the FIR against him on account of electric dues. It has been disconnected after visit of enforcement team at the time of checking of illegal connection. The allegation of the FIR are totally false. It is also contended that applicant has moved an application dated 29.3.2022 before S.D.O. Electricity Department for correction of electric bill but same has not been decided yet. The applicant is innocent and has not committed any offence. The entire criminal proceeding is an abuse of process of law and court. Learned counsel also contended that in para no. 8 of U.P. Electricity Supply Code, 2005 photography is mandatory in such cases but no photography has been conducted, hence, the entire proceeding of checking is vitiated.

Mr. Udit Chandra, learned counsel for the U.P. Power Corporation submitted that on checking it was found that applicant was unauthorizedly using electricity by connecting electric line while his connection was disconnected earlier due to non payment of dues. He also submitted that FIR was lodged on 27.11.2019 while electricity bill has been paid thereafter. It is also contended that photography is not mandatory under the U.P. Electricity Supply Code.

In the FIR there are clear allegations against the applicant that he was illegally using electricity while his connection was disconnected earlier and department has lodged the FIR. After credible evidence charge-sheet has been submitted and cognizance has been taken. There is no provision in the U.P. Electricity Supply Code which made mandatory the photography. It is well settled principle of law that at this stage only prima facie case is to be seen as propounded in the case of **Zandu Pharmaceutical Works Ltd. Vs. Mohd. Saraful Haq and another (Para-10) 2005 SCC (Cr.) 283**. All other arguments as assailed by the learned counsel for the applicant are matter of trial which can not be considered at this stage in a proceeding U/s 482 Cr.P.C. There is no material on record to demonstrate that proceeding is an abuse of the process of law or court. So there is no sufficient ground to interfere while exercising powers under section 482 Cr.P.C.

The application U/s 482 Cr.P.C. is devoid of merit and is hereby dismissed.

Order Date :- 27.7.2022

Masarrat